EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 47400/12
Asylzhan Rakhmetovich KELMUKHAMBETOV
against Russia

The European Court of Human Rights (Third Section), sitting on 28 May 2020 as a Committee composed of:

Alena Poláčková, *President,*
Dmitry Dedov,
Gilberto Felici, *judges,*

and Liv Tigerstedt, *Acting Deputy Section Registrar,*

Having regard to the above application lodged on 17 July 2012,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Asylzhan Rakhmetovich Kelmukhambetov, was born in 1969. He was represented by Ms R.M. Rogacheva, a lawyer practising in Orenburg.

The applicant's complaints under Articles 9, 10 and 11 of the Convention about alleged violations his rights to freedom of religion, expression and association were communicated to the Russian Government ("the Government") , who submitted observations on the admissibility and merits. The observations were forwarded to the applicant, who was invited to submit his own observations. No reply was received to the Registry's letter.

By letter dated 12 October 2018, sent by registered post, the applicant's representative was notified that the period allowed for submission of his observations had expired on 2 May 2018 and that no extension of time had been requested. The representative's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application.

After several unsuccessful delivery attempts, the Court's letter came back on 14 January 2019 as "unclaimed".

THE LAW

In the light of the foregoing, and in the absence of any special circumstances regarding respect for the rights guaranteed by the Convention and the Protocols thereto, the Court, in accordance with Article 37 § 1 (a) of the Convention, considers that it is no longer justified to continue the examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 18 June 2020.

Liv Tigerstedt	Alena Poláčková
Acting Deputy Registrar	President